



CHAPTER liii

An Act to make provision with respect to the registration of premises in the county borough of Brighton used for the conduct of sales by auction to empower the Brighton Extra-mural Cemetery Company Limited to transfer and the mayor aldermen and burgesses of the said borough to purchase the undertaking of the said company to make further provision with respect to the health local government improvement and finances of the borough and for other purposes. [30th July 1954.]

WHEREAS the borough of Brighton (hereinafter referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation"):

And whereas it is expedient that provision should be made as in this Act contained with respect to the registration of premises within the borough used for the conduct of sales by auction:

And whereas it is expedient that the Brighton Extra-mural Cemetery Company Limited should be empowered to transfer their undertaking to the Corporation and that the Corporation should be empowered to purchase the undertaking by agreement:

And whereas it is expedient that further and better provision should be made with respect to the health local government and improvement and finances of the borough and that the powers of the Corporation should be enlarged and extended as by this Act provided:

And whereas it is expedient that the other provisions of this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Brighton Corporation Act 1954.

**Act divided
into Parts.**

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Premises used for sales by auction.

Part III.—Undertaking of Brighton Extra-mural Cemetery Company Limited.

Part IV.—Movable dwellings and camping grounds.

Part V.—Streets.

Part VI.—Sanitation and buildings.

Part VII.—Public order and public safety.

Part VIII.—Finance and miscellaneous.

Part IX.—General.

Interpretation.

3.—(1) In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Act of 1936 have the same respective meanings and where in any particular Part of that Act special meanings are assigned to words or expressions occurring therein those words or expressions have the same respective meanings in any provisions of this Act dealing with the same subject-matter as that Part of that Act.

(2) In this Act unless the subject or context otherwise requires and except as otherwise expressly provided—

“ the Act of 1931 ” means the Brighton Corporation Act 1931 ;

“ the Act of 1933 ” means the Local Government Act 1933 ;

“ the Act of 1936 ” means the Public Health Act 1936 ;

“ the appointed day ” has the meaning assigned to it by section 41 (The appointed day) of this Act ;

“ the borough ” means the borough of Brighton ;

“ the Corporation ” means the mayor aldermen and burgesses of the borough ;

“ the council ” means the council of the borough ;

“ daily penalty ” means a penalty for each day on which any offence is continued by a person after conviction ;

“ enactment ” includes this Act and any general or local Act order byelaw or regulation for the time being in force within the borough ;

“ the Minister ” means the Minister of Housing and Local Government ;

“ statutory undertakers ” means any company body or person authorised by any Act of Parliament or order having the force of an Act to supply electricity gas or water ;

“ the town clerk ” and “ the surveyor ” mean respectively the town clerk and the surveyor of the borough.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

PREMISES USED FOR SALES BY AUCTION

4.—(1) In this Part of this Act—

Definitions
for Part II.

the expression “ premises ” includes land ;

the expression “ prescribed articles ” means any plate plated articles linen china glass books pictures prints furniture jewellery articles of household or personal use or ornament or any musical or scientific instruments or apparatus ; and

the expression “ sale by auction ” includes any public sale at which a salesman invites an assembly of persons or any of them to acquire prescribed articles by competitive bidding.

(2) This Part of this Act applies to any sale by auction on any premises in the borough of any prescribed article whether or not in combination with the sale by auction of any other articles or things.

PART II
—cont.

Registration
of premises
used for sales
by auction.

5.—(1) As from the appointed day no premises in the borough shall be used for the conduct of any sale by auction to which this Part of this Act applies unless they are registered under this section for that purpose by the Corporation.

(2) Subject to the following provisions of this section the Corporation shall on the application of the occupier of or of a person proposing to occupy any such premises register those premises under this section.

(3) If—

(a) it appears to the Corporation—

(i) that any premises for the registration of which application has been made under this section or which are registered under this section are unsuitable for use for the purpose of conducting sales by auction ; or

(ii) that any such premises have been used for the purpose of conducting otherwise than in good faith any sale by auction ;

(b) the applicant for registration or the occupier for the time being of any such premises has been convicted of any offence involving fraud or dishonesty ;

the Corporation shall if they propose to take the matter into consideration serve on the applicant or occupier as the case may be a notice stating the place and time not being less than seven days after the date of the service of the notice at which they propose to do so and informing him that he may attend before them with any witnesses whom he desires to call at the place and time mentioned to show cause why the Corporation should not for reasons specified in the notice refuse the application or as the case may be cancel the registration of the premises.

(4) If a person on whom notice is served under the last preceding subsection fails to show cause to the satisfaction of the Corporation they may refuse the application or as the case may be cancel the registration of the premises and shall forthwith give notice to him of their decision in the matter and shall if so required by him within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it was based.

(5) A person aggrieved by a decision of the Corporation under this section to refuse to register any premises or to cancel a registration of any premises may appeal to a court of summary jurisdiction.

(6) (a) In the event of the occupier of premises registered under this section ceasing to occupy the premises otherwise than by reason of his death he shall within seven days after so ceasing give to the Corporation notice in writing thereof.

(b) If a person required to give notice under this subsection fails to do so he shall be liable to a penalty not exceeding five pounds.

(7) In the event of the occupier of premises registered under this section dying or ceasing to occupy the premises the registration of the premises then in force shall (unless previously cancelled under this section) continue in force for a period of three months from the date of death or cesser of occupation but shall upon the expiration of that period cease to have effect.

(8) Any person who conducts or assists in conducting a sale by auction to which this Part of this Act applies on any premises in the borough which are not registered under this section and any person who knowingly permits any such premises to be used for the purpose of conducting a sale by auction shall be liable to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

6. Notwithstanding anything in the last preceding section of this Act sales by auction to which this Part of this Act applies of the undermentioned classes may be conducted on premises which are not registered under that section—

- (a) sales at intervals of not less than six months of property so long as no substantial part of the property was brought on to the premises for the purposes of the sale ;
- (b) sales for the purpose of assisting the funds of any voluntary organisation if the whole or substantially the whole of the proceeds of sale are devoted to the funds of the organisation.

7. Where an offence punishable under this Part of this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance or be attributable to any neglect on the part of any director manager secretary or other similar officer of the body corporate or any person purporting to act in such capacity he as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Offences by
bodies
corporate.

8. For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this Part of this Act shall be provisions which it is the duty of the Corporation to enforce.

As to section
287 of Public
Health Act
1936.

For protection
of Royal
Institution of
Chartered
Surveyors
Chartered
Auctioneers'
and Estate
Agents'
Institute and
Incorporated
Society of
Auctioneers
and Landed
Property
Agents.

Definitions
for Part III.

9. The provisions of this Part of this Act shall not apply to the use of any premises by a member of the Royal Institution of Chartered Surveyors the Chartered Auctioneers' and Estate Agents' Institute or the Incorporated Society of Auctioneers and Landed Property Agents.

PART III

UNDERTAKING OF BRIGHTON EXTRA-MURAL CEMETERY COMPANY LIMITED

10. In this Part of this Act—

“the company” means the Brighton Extra-mural Cemetery Company Limited ;

“the date of transfer” means the date on which the undertaking is transferred to the Corporation pursuant to this Part of this Act ;

“the undertaking” means the undertaking of the company as existing on the date of transfer including—

(a) the cemetery known as the Brighton Extra-mural Cemetery and all lands buildings premises apparatus furniture fittings working stock and monuments then belonging to the company ;

(b) all policies of insurance investments securities book debts bank balances and cash then in the hands of the company or in the hands of their bankers agents or servants ;

(c) all books of account papers and other documents relating to the undertaking ; and

(d) all other the real and personal property then belonging to the company.

Purchase by
Corporation of
undertaking.

11.—(1) The Corporation may purchase and the company may (notwithstanding anything contained in any other Act) sell the undertaking to the Corporation on such terms and conditions as may be agreed.

(2) As from the date of transfer the Corporation shall be deemed to have acquired the undertaking as the burial board for the borough under the Burial Acts 1852 to 1906.

Repeal of
Brighton
Extra-mural
Cemetery
Company's
Act 1851 with
savings.

12.—(1) On the date of transfer the Brighton Extra-mural Cemetery Company's Act 1851 (except section IX (Compensation to Incumbents of other Parishes) thereof which is for convenience of reference set out in the First Schedule to this Act) shall be repealed.

(2) Notwithstanding anything in subsection (1) of this section the provisions of the Cemeteries Clauses Act 1847 with respect to preventing nuisance from the cemetery shall continue to apply as if that subsection had not been enacted.

PART III
—cont.

(3) In the said section IX and the said provisions of the Cemeteries Clauses Act 1847 the expression “the cemetery” shall continue to mean the Brighton Extra-mural Cemetery and the expression “the company” shall mean the Corporation.

13. In respect of each year during which the Corporation continue to use the consecrated part of the Brighton Extra-mural Cemetery for burials they shall pay to the vicar of Brighton for the time being the sum of one hundred pounds less any fees receivable by him during that year in respect of burials in that part of the cemetery.

As to payments
to vicar of
Brighton.

PART IV

MOVABLE DWELLINGS AND CAMPING GROUNDS

14. In this Part of this Act unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

Definitions for
Part IV.

“movable dwelling” includes—

(a) any tent ;

(b) any structure capable of being moved from place to place ; and

(c) any van cart carriage truck tramcar railway-carriage motor car caravan trailer omnibus or other vehicle ;

used or intended to be used for the purpose of human habitation (whether temporarily or otherwise) but does not include—

(i) any tent structure or vehicle temporarily used by shepherds labourers or other persons for agricultural or other like purposes or in connection with building operations ;

(ii) any tent structure or vehicle temporarily used for the service of the council of any county county borough or county district or other public authority ;

(iii) any canal boat or any other boat ;

(iv) any shelter provided for the treatment of tuberculosis or used in connection with an open-air school ;

(v) any vehicle used by the British Transport Commission in connection with the maintenance and repair of their undertaking ; or

PART IV
—cont.

(vi) any van or similar vehicle belonging to any statutory undertakers and any trailer drawn by such van if and so long as the van and trailer are used by those undertakers for the purposes of their undertaking ;

“ camping ground ” means any area of land on which movable dwellings are situated or which is provided for the placing of movable dwellings ;

“ occupier ” in relation to a movable dwelling includes an owner.

Court may
prohibit
movable
dwellings in
certain areas.

15.—(1) Where it appears to the Corporation—

- (a) that the amenities of any part of the borough are prejudicially affected by the presence of or conditions arising from any movable dwelling or movable dwellings in the borough ; or
- (b) that annoyance is caused to the residents in or visitors to any part of the borough by reason of the noisy indecent or other offensive conduct of the occupiers of or persons frequenting any movable dwelling or movable dwellings in the borough ;

the Corporation may make complaint to a court of summary jurisdiction and the court may by order—

- (i) require the removal by the occupier or occupiers thereof of the movable dwelling or of all or any particular one or more of the movable dwellings to which the complaint relates within such period as may be prescribed by the order ; and
- (ii) prohibit the placing of any movable dwelling on or limit the number or define the class of movable dwellings to be at any one time placed or situate within the whole or some part of an area to be specified in the order.

(2) Any person aggrieved by any order made by a court of summary jurisdiction under subsection (1) of this section may appeal to the next practicable court of quarter sessions holden for the borough.

(3) As soon as practicable after the making of an order under subsection (1) of this section prohibiting the placing of any movable dwelling or limiting the number or defining the class of movable dwellings the terms of the order shall be published by the Corporation in one or more local newspapers circulating in the borough and by placards posted in conspicuous positions in or near to the area specified in the order and such placards shall be left so posted so long as the order is in force.

(4) An order made by a court of summary jurisdiction under subsection (1) of this section prohibiting the placing of any movable dwelling or limiting the number or defining the class of movable dwellings shall take effect as from the expiration of fourteen days from the first publication of the terms of the order in the local newspaper under subsection (3) of this section and the area specified in such order shall not extend beyond the distance of two hundred yards from the movable dwelling or all of the movable dwellings to which the complaint related and no limitation or definition in such an order shall operate so as to prevent the retention on the area specified in the order of any movable dwelling not being a movable dwelling to which the complaint related.

(5) (a) Any occupier of a movable dwelling who fails to comply with any order of the court made under subsection (1) of this section requiring the removal of a movable dwelling within the period prescribed by the order shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds and the Corporation may themselves at any time after the expiration of the said period enter on the land and remove the movable dwelling and recover the expense of so doing from the occupier or occupiers.

(b) Any person who places or retains any movable dwelling in contravention of any order of the court made under subsection (1) of this section prohibiting the placing of any movable dwelling or limiting the number or defining the class of movable dwellings shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds and the Corporation may themselves enter on the land and remove the movable dwelling in respect of which the offence has been committed and recover the expense of so doing from the person guilty of the offence.

(6) (a) Where a court of summary jurisdiction has made an order under subsection (1) of this section prohibiting the placing of any movable dwelling or limiting the number or defining the class of movable dwellings an application for the rescission of the order may be made to the court—

- (i) at any time by the Corporation ; or
- (ii) at any date not being less than three years from the date on which the order was made by any person deeming himself aggrieved by it provided he gives to the Corporation not less than fourteen days' notice of his intended application ;

and the court may on the hearing of any such application rescind the order.

PART IV
—cont.

(b) If the court rescinds the order notice of the rescission of the order shall as soon as practicable be published by the Corporation in one or more local newspapers circulating in the borough and the Corporation shall forthwith take down and remove all placards previously posted by them in or near to the area specified in the order in pursuance of subsection (3) of this section.

(7) An order made under this section shall not operate so as to prohibit any development or require the discontinuance of any use for which planning permission under Part III of the Town and Country Planning Act 1947 has already been granted otherwise than by a development order but without prejudice to the power of the court by order to require the removal of any particular one or more movable dwellings with respect to which the Corporation have complained on any of the grounds mentioned under paragraph (b) of subsection (1) of this section.

Byelaws as to
camping
grounds.

16.—(1) The Corporation may make byelaws with respect to any camping grounds within the borough whether provided by them or not—

- (a) for preventing the amenities of the borough being prejudicially affected by the state or condition of any such camping grounds ;
- (b) for securing the good and orderly conduct of persons frequenting any such camping grounds and of the occupiers of the movable dwellings situate thereon ;
- (c) for preventing annoyance to the residents in or visitors to the borough by the conduct of the occupiers of or persons frequenting movable dwellings situate on any such camping grounds.

(2) (a) A copy of any byelaws made by the Corporation under this section shall be appended to any licence granted by them under section 269 of the Act of 1936 in respect of any camping ground to which such byelaws relate.

(b) The Corporation in granting any licence under the said section 269 shall not attach any condition which is inconsistent with any byelaws made by them under this section.

Savings from
certain
provisions of
Part IV.

17. The last two preceding sections of this Act shall not apply to—

- (a) any movable dwelling or camping ground provided by or belonging to or used by any duly constituted religious or charitable society or any local education authority ;

- (b) any movable dwelling or camping ground provided by or belonging to or used by any association incorporated by royal charter or any organisation constituted by any such association in pursuance of their charter ;
- (c) any camping ground provided by or belonging to or used by members of any other duly constituted society or body operating throughout Great Britain which by their rules undertake responsibility for the management of the camping grounds provided by or belonging to them and used by their members and for the good conduct of their members when in camp ;
- (d) any movable dwelling situate on any such camping ground as is referred to in the foregoing paragraph (c) while the dwelling is occupied or used by the members of any society or body referred to in that paragraph ;
- (e) any movable dwelling which is used by a member of any duly constituted society or organisation operating throughout Great Britain which by their rules undertake responsibility for the good conduct of their members when in camp and for the proper use by their members of movable dwellings ; or
- (f) any movable dwelling which belongs to a person who is the proprietor of a travelling circus roundabout amusement fair stall or store (not being a pedlar hawker or costermonger) and which is regularly used by him in the course of travelling for the purpose of his business :

Provided that—

- (i) the exemptions conferred by the foregoing paragraphs (a) and (b) in respect of any movable dwelling or camping ground referred to in those paragraphs shall apply only for so long as the society association or organisation by or to which such movable dwelling or camping ground is provided or belongs or is used shall continue to make and enforce reasonable arrangements for the maintenance of good order amongst the persons using the movable dwelling and for the proper management of the camping ground ;
- (ii) the exemptions conferred by the foregoing paragraphs (c) and (d) in respect of any camping ground or movable dwelling referred to in those paragraphs shall only apply so long as the society or body by or to which such camping ground is provided or belongs or is used or by the members of which such movable dwelling is occupied or used are duly exercising responsibility for the management of the camping ground and for the good conduct of their members when in camp thereon ;

PART IV
—cont.

- (iii) the exemption conferred by the foregoing paragraph (e) in respect of a movable dwelling used by a member of a society or organisation shall apply only so long as that society or organisation continue to enforce the good conduct of their members and the proper use by their members of movable dwellings ;
- (iv) the exemption conferred by the foregoing paragraph (f) on any person referred to in that paragraph shall apply only so long as such person is not guilty of any misconduct ;
- (v) if any society association or organisation referred to in the said paragraphs (a) and (b) are using any camping ground provided by the Corporation or if any person being a member of any such society association or organisation or a person referred to in the said paragraph (f) is occupying or using a movable dwelling situate on any camping ground so provided the members of such society association or organisation or such person shall while camping on or occupying or using any movable dwelling situate on that camping ground comply with any byelaws made by the Corporation under this Part of this Act relating to that camping ground.

PART V

STREETS

Trees grass
verges and
gardens.

18.—(1) Subject to the provisions of this section the Corporation shall have power—

- (a) to plant trees or shrubs in any street in the borough or in tubs placed by them for the purpose in any such street ;
- (b) to provide baskets of plants or flowers and attach the same to posts or standards in any such street ;
- (c) to lay out grass verges or gardens in any such street ;
- (d) to provide guards or fences and otherwise do anything expedient for the maintenance or protection of such trees shrubs tubs baskets grass verges or gardens ;
- (e) to cut down any such tree or shrub to remove any such tub or basket and to abolish any such grass verge or garden or enlarge or diminish the area thereof ;
- (f) by notice to prohibit persons from entering upon or causing or permitting horses cattle or vehicles to enter upon any such grass verge which is maintained in an ornamental condition or mown or any such garden :

Provided that the Corporation shall not under the powers of paragraph (b) of this subsection attach a basket to any post

or standard (other than a post or standard provided by them) except with the consent of the owner thereof.

PART V
—cont.

(2) Any such notice as is referred to in paragraph (f) of the foregoing subsection shall be conspicuously posted on or in proximity to the grass verge or garden to which it relates and if any person contravenes a notice so posted he shall be liable to a penalty not exceeding twenty shillings.

(3) Subject to the provisions of this and the next following subsection the powers conferred by this section shall not be exercisable except in a street maintainable by and vested in the Corporation or upon land so vested which forms part of a street:

Provided that when carrying out in any street or any part thereof any works under the Private Street Works Act 1892 the Corporation may exercise any such power in the street or that part thereof with the consent of the majority in number and rateable value of the owners of land abutting on the street or that part thereof and treat any expenses incurred in so doing as part of the expenses of carrying out the said works.

(4) The powers conferred by this section (except the powers conferred by paragraph (f) of subsection (1)) may be exercised by the Corporation upon any land acquired by them for the purposes of the construction or improvement of a street or of preventing the erection of buildings detrimental to the view from the street notwithstanding that the land does not form part of a street.

(5) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(6) Section 1 of the Roads Improvement Act 1925 shall cease to apply to roads maintainable by the Corporation and any such land as is referred to in subsection (4) of this section and anything done by the Corporation under that section with respect to such roads or such land before the passing of this Act shall be deemed to have been done under this section.

(7) Nothing in this section shall affect the duty of the Corporation to provide footpaths or grass or other margins under section 58 of the Road Traffic Act 1930.

19.—(1) The Corporation at their own expense may—

(a) execute temporary repairs in ;

(b) execute works for preventing or minimising dust in ;

Powers as to
temporary
repairs of
private streets.

PART V
—cont.

(c) erect lamps in ;

(d) scavenge light water or tar spray ;

any street in the borough which is dedicated to the public use but is not a highway repairable by the inhabitants at large.

(2) The exercise by the Corporation of their powers under this section shall not prejudice their powers under any statutory provision for the time being in force in the borough relating to private street works or private street improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.

(3) Section 303 (Powers as to temporary repairs of private streets) of the Act of 1931 is hereby repealed.

Extension
of power to
contribute to
expenses of
private street
works.

20. The power of the Corporation under section 15 of the Private Street Works Act 1892 to contribute the whole or a portion of the expenses incurred by them in executing private street works with respect to any street or part of a street shall be extended so as to cover also the contribution of the whole or any portion of the amount which would otherwise be apportioned and charged under that Act in respect of the said expenses against any premises of which only a flank fronts adjoins or abuts on such street or part of a street and the amount which would otherwise be so apportioned and charged against any such premises shall be reduced by the amount of the contribution made by the Corporation under this section in respect of such premises.

Decorations
in streets.

21.—(1) The Corporation may on the occasion of any public festivity cause flag-poles and pylons to be erected in any street in the borough for the purpose of displaying decorations and may for that purpose provide sockets or slots in or under the surface of any such street.

(2) If any person wilfully removes or damages any flag-pole pylon socket or slot erected or provided under this section he shall be liable to a penalty not exceeding five pounds.

(3) The Corporation shall not exercise the powers of this section in a trunk road without the consent of the Minister of Transport and Civil Aviation.

For protection
of South
Eastern
Electricity
Board and
South Eastern
Gas Board.

22. For the protection of the South Eastern Electricity Board and the South Eastern Gas Board (each of whom is in this section referred to as “the undertakers”) the following provisions shall unless otherwise agreed in writing between the Corporation and the undertakers apply and have effect:—

(1) In this section “apparatus” means mains cables wires pipes syphons valves hydrants meters and other works

and apparatus belonging to or maintained by the undertakers or lawfully laid down by them or their predecessors:

PART V
—cont.

- (2) Nothing in the following sections of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the Corporation shall so exercise those powers as not so far as reasonably practicable to render less convenient the access to any apparatus:—

Section 18 (Trees grass verges and gardens);

Section 21 (Decorations in streets):

- (3) Any difference or dispute which may arise between the Corporation and the undertakers under this section shall be referred to and determined by an arbitrator to be agreed upon between the parties or in default of such agreement appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to the arbitration.

PART VI

SANITATION AND BUILDINGS

23.—(1) Where the council—

- (a) resolve to construct a sewer in a street or part of a street in the borough being a street or part which is repairable by the inhabitants at large and has not been previously sewered; and
- (b) include in the resolution a declaration that the construction of the sewer will in the opinion of the council increase the value of premises fronting adjoining or abutting on the street or that part thereof;

Recovery of
expenses of
sewerage
public
highway.

then the provisions of the Second Schedule to this Act shall have effect as respects the apportionment and recovery by the Corporation of the expenses incurred in constructing the sewer:

Provided that all liabilities under the said schedule in respect of the sewer shall cease at the expiration of two years from the date when the resolution becomes operative if the construction of the sewer is not then complete.

- (2) Notice of any such resolution shall be published by the Corporation in a local newspaper circulating in the borough and the resolution shall become operative for the purposes of this section and the said schedule on the date of such publication.

PART VI
—cont.

(3) Either—

- (a) a copy of any such newspaper containing any such notice ; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of the publication.

Recovery of expenses of sewerage prospective street.

24. Where land in the borough in which a length of sewer has been constructed after the passing of this Act at the expense of the Corporation becomes a street (whether repairable by the inhabitants at large or not) then the provisions of the Second Schedule to this Act shall have effect as respects the apportionment and recovery by the Corporation of the expenses incurred in constructing the length of sewer :

Provided that where compensation due to the owner of any land in respect of damage sustained by reason of the construction therein of the length of sewer has been diminished by setting off any sum on account of the enhancement in value of the land by reason aforesaid this section shall not apply to so much of the length of sewer as has been constructed in that land.

Prevention of evasion of liabilities under last two foregoing sections.

25.—(1) If on a complaint by the Corporation to a court of summary jurisdiction it is proved to the satisfaction of the court—

- (a) that by reason of any transfer of land any part of any premises (hereafter in this section referred to as “the severed part”)—
 - (i) has ceased to be included in premises fronting adjoining or abutting on a street or part of a street to which the last but one foregoing section of this Act applies ; or
 - (ii) has been excluded from premises which have subsequently become premises fronting adjoining or abutting on a street to which the last foregoing section of this Act applies or has ceased to be included in premises fronting adjoining or abutting on such a street ; and
- (b) that the transfer was intended for the purpose of evading liability under the Second Schedule to this Act imposed by the last but one foregoing or the last foregoing section as the case may be ;

then the court may make such order under the following provisions of this section as it thinks just for the purpose of ensuring that the said liability is not evaded by reason of the transfer.

(2) Any such order may direct—

- (a) that for the purposes of paragraph 2 of the said schedule the severed part shall be deemed to be premises fronting adjoining or abutting on the street or part of the street in question and shall be deemed to have had at the relevant date within the meaning of the said schedule such frontage on the street as may be specified in the order ;
- (b) that for the purposes of sub-paragraph (a) of paragraph 6 of the said schedule the site of a new building erected on the severed part and the land occupied therewith shall be deemed to have such frontage on the street or part of the street as may be specified in the order ;
- (c) that any such amendment shall be made of any entry in the register of local land charges as may be specified in the order including an amendment taking effect as from a past date.

(3) Any order made under paragraph (a) of subsection (2) of this section may also direct that any premises from which the severed part has been excluded or in which it has ceased to be included shall not be deemed to be premises fronting adjoining or abutting on the street or part of the street or shall be deemed to have such frontage as may be specified in the order.

(4) Orders made under any provision of subsection (2) of this section may be made on separate complaints made by the Corporation at different times.

(5) For the purposes of this section the expression “ transfer ” includes any disposal of land whether by way of sale lease exchange gift or otherwise.

26. Section 24 of the Act of 1936 shall have effect in its application to the borough as if the following proviso were substituted for the proviso to subsection (1) of that section:—

“ Provided that unless in the opinion of the medical officer of health or the sanitary inspector immediate action is necessary notice of the work proposed to be undertaken shall not less than seven days before the work is commenced be given to the owners of any premises known by the local authority to be served by the length of sewer in question and the local authority shall consider any representations as to the need for and the reasonableness of the proposed work which may be made to them by any of those owners within seven days of the service of the notice.”

27.—(1) Paragraphs (b) and (ii) of subsection (1) of section 58 of the Act of 1936 and so much of subsection (2) of that section as relates to those paragraphs shall cease to have effect in the

Recovery of
cost of
maintaining
public sewers.

Ruinous and
dilapidated
buildings and
neglected
sites.

PART VI
—cont.

borough and the following provisions of this section shall have effect in lieu thereof.

(2) Where a building or part of a building in the borough is by reason of its ruinous or dilapidated condition seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner thereof within a reasonable time specified in the notice—

- (a) to execute such works of repair or restoration ; or
- (b) if he so elects to take such steps for demolishing the building or any part thereof and removing any rubbish or other material resulting from or exposed by the demolition ;

as may be necessary for remedying the cause of complaint.

(3) Where rubbish or other material resulting from or exposed by the demolition or collapse of a building or part of a building in the borough is lying on the site of the building or that part thereof or on any land occupied with the building and by reason thereof the site or land is in such a condition as to be seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner of the site or land within a reasonable time specified in the notice to take such steps for removing the rubbish or material as may be necessary for remedying the cause of complaint.

(4) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish or other material removed by the Corporation under this section.

(6) In this section the expression “building” includes any structure.

(7) Section 334 (Dilapidated and neglected buildings) of the Act of 1931 is hereby repealed.

As to defective
premises.

28.—(1) Where the Corporation are satisfied that—

- (a) any house in the borough or the roof of any building in the borough is in such a state (in this section referred to as a “defective state”) as to be prejudicial to health or a nuisance ; and
- (b) having regard to all the circumstances unreasonable delay in remedying the defective state would be occasioned by following in relation to such house or building (in this section referred to as “the premises”)

the procedure prescribed in sections 93 to 95 of the Act of 1936 ;

PART VI
—cont.

the Corporation may (instead of serving an abatement notice as required by section 93 of the Act of 1936) serve upon the person upon whom it would otherwise have been appropriate under the said section 93 to serve such an abatement notice a notice to the effect that the Corporation intend to remedy the defective state of the premises themselves and specifying the defects which they intend to remedy.

(2) Not later than the end of the seventh day after the Corporation have served a notice under subsection (1) of this section the person upon whom such notice was served may serve a counter-notice upon the Corporation stating that he intends to remedy the defective state of the premises and if such person having duly served such counter-notice commences within such time thereafter as the Corporation consider reasonable to execute such works and take such steps as may be necessary to remedy such defective state and so long as he progresses to the satisfaction of the Corporation with the execution of such works and the taking of such steps the Corporation shall not take action under subsection (3) of this section in respect of such premises.

(3) At any time after the expiration of nine days after the service of a notice under subsection (1) of this section and subject to the provisions of subsection (2) of this section the Corporation may execute such works and take such steps as may be necessary to remedy the defective state of the premises to which such notice relates and subject to the provisions of subsection (4) of this section may recover the expenses reasonably incurred by them in so doing from the person upon whom the notice was served.

(4) (a) In proceedings to recover expenses under subsection (3) of this section it shall be a defence to prove that—

(i) the alleged defective state did not exist at the time of the service of the notice ; or

(ii) the need to abate the defective state was not so urgent as to justify the Corporation themselves executing such works and taking such steps without first complying with the provisions of section 93 and section 94 of the Act of 1936 ; or

(iii) the person upon whom the notice was served having duly served a counter-notice under subsection (2) of this section commenced within a reasonable time and progressed reasonably with the execution of such works and the taking of such steps as were necessary to remedy the defective state of the premises.

PART VI
—cont.

(b) A person against whom proceedings are taken under subsection (3) of this section (hereafter in this section referred to as “the original defendant”) shall upon information duly laid by him and on giving to the Corporation not less than three clear days’ notice of his intention be entitled to have any person to whose default or act or sufferance he alleges that the defective state of the premises was due brought before the court in the proceedings and if the original defendant proves that the defective state of the premises arose or continued by the default or act or sufferance of that other person the court shall have power—

- (i) to order that such expenses as aforesaid may be recovered from that other person ; or
- (ii) to apportion the expenses between persons by whose defaults acts or sufferances the defective state of the premises arose or continued in such manner as the court may deem fair and reasonable.

(c) Where the original defendant seeks to avail himself of the provisions of paragraph (b) of this subsection—

- (i) the Corporation as well as the person to whose default or unlawful act or sufferance the original defendant alleges that the defective state of the premises is due shall have the right to cross-examine the original defendant if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence ; and
- (ii) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(5) The Corporation may if they think fit exercise the powers of this section in relation to such defects in the premises as may be specified in the notice notwithstanding the fact that other defects may exist in such premises and in that case nothing contained in this section or done or executed thereunder shall prejudice or affect the powers of the Corporation under sections 93 to 98 and section 100 of the Act of 1936 in relation to any such other defect in such premises.

(6) If and to the extent that the council so direct the powers and functions of the Corporation under this section may be exercised by the medical officer of health and the chief sanitary inspector of the borough.

Registration
of premises
used for sale
etc. of certain
frozen liquids.

29. As from the appointed day no premises in the borough shall subject to the provisions of subsection (7) of section 14 of the Food and Drugs Act 1938 as applied by this section be used for the sale or the manufacture for the purposes of sale of any

frozen liquid of the nature of a sweet or confection or for the storage of any such frozen liquid intended for sale unless they are registered in accordance with the provisions of section 14 of the Food and Drugs Act 1938 and the provisions of the said section shall apply to such premises in all respects as if they were premises used for the sale or the manufacture for the purposes of sale of ice-cream or the storage of ice-cream intended for sale.

PART VI
—cont.

PART VII

PUBLIC ORDER AND PUBLIC SAFETY

30.—(1) As from the appointed day no person shall at any place in the borough to which this section applies— Touting
hawking etc.

- (a) importune any person by touting for any hotel lodging-house refreshment house or shop or any pier garden theatre or place of amusement or any boat hackney-carriage or public service vehicle ; or
- (b) without the consent of the Corporation which may be given on such terms and conditions as they think fit—
 - (i) hawk sell or offer for sale any article or commodity ; or
 - (ii) take any photograph by way of trade or business of any person :

Provided that—

- (i) the Corporation shall not withhold their consent under paragraph (b) of this subsection to the sale or offering for sale by any person of newspapers and periodicals except on the ground that their consent to such sale or offering for sale has already been given to a reasonably sufficient number of other persons ;
 - (ii) for the purpose of the said paragraph (b) the taking of a photograph for press purposes by any duly accredited representative of a newspaper periodical or news agency or by any person systematically selling or supplying photographs to newspapers periodicals or news agencies shall not be deemed to be the taking of a photograph by way of trade or business.
- (2) This section applies to any place—
- (a) in or on any esplanade parade promenade marine drive or public walk ;
 - (b) in any park pleasure ground or open space within the meaning of the Open Spaces Act 1906 which is provided by the Corporation or under their management and control ;

PART VII
—cont.

(c) on the seashore ;

(d) in any street or part of a street to which this section may be applied by byelaws made by the Corporation under this section :

Provided that sub-paragraph (i) of paragraph (b) of subsection (1) of this section shall not apply to the hawking selling or offering for sale of fish at the fish market on the seashore as that market exists at the passing of this Act.

(3) Any person aggrieved by the refusal of the Corporation to give their consent under paragraph (b) of subsection (1) of this section or by any terms or conditions attached to such consent may appeal to a court of summary jurisdiction.

(4) If any person contravenes any of the foregoing provisions of this section he shall be liable to a penalty not exceeding—

(a) in the case of the taking of any photograph by way of trade or business of any person in any place referred to in paragraphs (a) (c) or (d) of subsection (2) of this section twenty pounds ; or

(b) in any other case five pounds.

(5) The provisions of this section shall not prevent any person owning any part of the seashore (including the Corporation) or any person with his consent exercising any rights which he could have exercised if this section had not been enacted.

Unauthorised
structures on
seashore.

31.—(1) No person shall without the consent of the Corporation erect provide place or use any structure or place any chair on any part of the seashore belonging or let to them unless he is authorised to do so by or under an enactment :

Provided that nothing in this section shall prevent a person placing a chair on the seashore for his own personal use or that of his family.

(2) Any person aggrieved by the refusal of the Corporation to give their consent under the foregoing subsection may appeal to a court of summary jurisdiction.

(3) If any person erects provides or places any structure or chair in contravention of subsection (1) of this section he shall be liable to a penalty not exceeding forty shillings and if after conviction thereof the structure or chair remains on any such part of the seashore he shall be liable to a penalty not exceeding twenty shillings for each day on which it so remains.

(4) If any person uses any structure in contravention of subsection (1) of this section he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) In this section the expression "structure" means any shed hut shelter tent booth stall stand shop or other erection or obstruction whether on wheels or not.

PART VII
—cont.

32.—(1) (a) The owner of any boat or vessel which is on any part of the seashore which is vested in the Corporation and is worn out or unfit to go to sea shall if required by the Corporation by notice in writing so to do remove such boat or vessel from the seashore within fourteen days from the date of the notice.

Removal of
stranded
vessels from
seashore.

(b) Any person who fails to comply with this subsection shall be liable (without prejudice to the subsequent provisions of this section) to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) Without prejudice to the provisions of subsection (1) of this section if any person upon whom a notice under that subsection is served fails to comply with that subsection the Corporation may remove the boat or vessel to which the notice relates or cause it to be removed and may dispose of it in such manner as they think fit and may recover the expenses of so doing from the said person:

Provided that where the Corporation dispose by way of sale of a boat or vessel in accordance with this subsection they shall pay the proceeds to the person upon whom notice was served under subsection (1) of this section in respect of such boat or vessel after deducting the amount of any expenses recoverable by them from him.

(b) If the owner of any such boat or vessel as is mentioned in subsection (1) of this section is unknown and cannot after diligent inquiry be found the Corporation may apply to a court of summary jurisdiction for an order empowering them to remove or cause to be removed and to dispose of any such boat or vessel and the court may make such order accordingly.

(3) The byelaw numbered 5 in the series of byelaws for securing good rule and government and for the prevention of nuisances on the sea-beach and foreshore in the borough made by the Corporation on the twenty-eighth day of July eighteen hundred and seventy-five is hereby revoked.

(4) Nothing in this section shall affect the powers conferred upon any person in relation to any wrecked stranded or abandoned vessel by Part IX of the Merchant Shipping Act 1894 or by any local Act.

(5) In this section the expression "owner" in relation to any boat or vessel in respect of which a notice is served under subsection (1) of this section means the owner of that boat or

PART VII
—cont.

vessel at the time of the service of the notice and the expression “seashore” shall not include the shore and bed of the sea below low-water mark of ordinary spring tides.

Restrictions
on use of
loudspeakers
in streets.

33.—(1) No person shall for the purpose of advertising any entertainment sporting event or meeting or any trade or business or any part of a trade or business operate or cause or suffer to be operated any loudspeaker when such loudspeaker is in any street in the borough.

(2) No person shall operate or cause or suffer to be operated any loudspeaker for any purpose when such loudspeaker is in any street in the borough unless he shall have given notice to the chief constable of the borough so as to be received by him at least twenty-four hours before such loudspeaker is operated.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds.

(4) This section shall not apply to—

- (a) the use of a loudspeaker by the Corporation or the police in the execution of their duty or in case of emergency ; or
- (b) the use of a loudspeaker by the British Transport Commission for the purpose of announcements to their passengers or staff at any station or depot of the commission or by any persons operating public service vehicles for the purpose of announcements to their passengers whilst in any of their vehicles or any of their stations or depots or for communications between their staff ; or
- (c) the use of a loudspeaker by a travelling showman in any part of a street while such part thereof is being used as a pleasure fair and such fair is open to the public ; or
- (d) the use of a loudspeaker for any religious charitable or political purpose or for the purpose of a trade union (as defined in the Trade Union Act Amendment Act 1876) ; or
- (e) the operation of any loudspeaker on a vehicle constructed or adapted for use for conveyance of any perishable commodity for human consumption (including ice-cream) where—
 - (i) the loudspeaker is used in conjunction with an electrically operated instrument to produce sounds (not being words) ;

(ii) the main purpose of operating the said loudspeaker is to notify members of the public that the driver or other attendant of the vehicle is available to sell to members of the public such commodity conveyed by the vehicle ;

PART VII
—cont.

(iii) the loudspeaker is not operated so as to be a nuisance.

For the purposes of this paragraph “ice-cream” includes any similar commodity and the commodity known as “water ice.”

(5) Nothing in this section shall apply to the use within a motor vehicle of a wireless receiving set used solely for the private purposes of the occupants of the said vehicle.

(6) In this section the expression “loudspeaker” includes an amplifier or similar instrument.

PART VIII

FINANCE AND MISCELLANEOUS

34. The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall repay the sum or sums so borrowed within such period as they may determine not exceeding five years from the date of the passing of this Act.

Power to
borrow.

35.—(1) Section 56 (Effect on water rates of alteration in valuation list) of the Third Schedule to the Water Act 1945 shall cease to apply to the water undertaking of the Corporation and to be incorporated with Part III (Water) of the Act of 1931 and the following provisions of this section shall have effect in lieu thereof.

Effect on water
rates of
alteration in
valuation list.

(2) Where under section 41 of the Local Government Act 1948 an amendment is made in the valuation list for the time being in force the amendment shall for the purpose of calculating the amount due in respect of any water rate payable under section 55 of the Third Schedule to the Water Act 1945 as incorporated with Part III of the Act of 1931 have effect retrospectively as from the date as from which under section 42 of the Local Government Act 1948 it has effect for the purpose of calculating the amount due in respect of any general rate.

(3) Notwithstanding anything in the said section 55 with respect to the equality of instalments of a water rate any necessary adjustment shall be made in the instalments of the rates

PART VIII
—cont.

current at the date from which the alteration in the valuation list is deemed to have had or has effect and any subsequent instalments thereof.

(4) If it is found that by reason of the foregoing provisions of this section too much or too little has been paid in respect of any water rate the difference shall be repaid or allowed or (as the case may be) shall be paid and may be recovered in the manner in which water rates are recoverable.

Amendment
of section 280
of Act of 1931.

36. Section 280 (Further powers for acquisition of land) of the Act of 1931 shall have effect and shall be deemed always to have had effect as if for the words “ a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation ” in subsection (2) there were substituted the words “ an appropriate amount shall be carried in the books of the Corporation to the debit of the account relating to such undertaking powers or duties and any other necessary appropriations or adjustments shall be made in the accounts of the Corporation ” and as if at the end of that subsection there were inserted the following words:—

“ Provided that in the case of the appropriation of such lands to any undertaking powers or duties in respect of which a grant may be payable to the Corporation out of moneys provided by Parliament (other than the exchequer equalisation grant payable under Part I of the Local Government Act 1948 or any other similar grant payable under any Act amending or repealing that Act) the Corporation shall make such adjustment in their accounts as the Minister may direct.”

As to
compensation
for injurious
affection of
land.

37.—(1) Any question as to whether any other land is injuriously affected by the use in breach of any restrictive covenant by the Corporation of any land acquired by them (whether before or after the passing of this Act) or as to the amount of compensation payable in respect of any such injurious affection shall notwithstanding that the land acquired may not be or may not have been compulsorily acquired be determined under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919.

(2) In this section the expression “ land ” includes any estate or interest in or over land.

(3) (a) Before this section shall apply to any land the Corporation shall give notice in two successive weeks in one or more newspapers circulating in the borough specifying the land and stating generally the effect of this section and that any person claiming to be entitled to enforce a restrictive covenant

against the land may within twenty-one days from the first publication of the notice intimate in writing such claim to the Corporation.

(b) If any person intimating a claim as provided in paragraph (a) of this subsection produces to the Corporation his deeds of title in support of the claim within such reasonable time as the Corporation may allow then the provisions of subsection (1) of this section shall not operate so as to prevent any such person from taking any action which but for subsection (1) of this section it would be competent for him to take in relation to such restrictive covenant.

(4) This section shall not apply to any land acquired by the Corporation compulsorily nor prejudice or affect the Corporation's powers of compulsory acquisition or any application or order under section 84 of the Law of Property Act 1925 for the discharge or modification of any restrictive covenant or any agreement or deed entered into by the Corporation with any person being or claiming to be entitled to enforce any such restrictive covenant as aforesaid.

(5) This section shall only apply to an acquisition of land for a purpose for which the Corporation are for the time being or could under any enactment for the time being in force be authorised to acquire the land compulsorily.

38.—(1) Any agreement entered into between the Corporation and the parent or guardian of a pupil at any secondary school may make provision for the payment by such parent or guardian to the Corporation of any sum not exceeding ten pounds in the event of the pupil ceasing without reasonable cause to attend such school before the date fixed by such agreement for the pupil to cease such attendance and the Corporation shall be entitled without proof of any actual damage incurred by reason of such pupil ceasing to attend such school to recover from such parent or guardian any sum not exceeding the sum specified in the agreement which the court may think fit to award in all the circumstances of the case. School agreements.

(2) For the purposes of this section the expression "secondary school" includes—

(a) a secondary school as defined by section 114 of the Education Act 1944; and

(b) a school in respect of which grants are paid by the Minister of Education under regulations made in pursuance of paragraph (b) of subsection (1) of section 100 of that Act and in which secondary education as defined by section 8 of that Act is provided.

PART VIII

—cont.

Extension of
power to
maintain
burial grounds.

39.—(1) The powers of the Corporation in relation to a burial ground provided by them shall include power to remove or alter the position of any broken displaced or dilapidated tombstone kerb or railings upon or surrounding a grave therein subject to the following provisions:—

(a) Before exercising the powers of this section the Corporation shall give notice of their intention so to do—

(i) by publishing the notice once in each of two successive weeks in a local newspaper circulating in the borough with an interval between each publication of not less than six clear days; and

(ii) by displaying the notice in a conspicuous position in the burial ground;

(b) Any such notice shall—

(i) contain brief particulars and specify an address at which full particulars of the works intended to be executed can be obtained; and

(ii) specify the date on which it is intended that those works will be commenced which shall not be earlier than the fourteenth day after the last publication of the notice in a newspaper as aforesaid or the twenty-first day after the notice is first displayed in the burial ground as aforesaid; and

(iii) state the effect of paragraph (c) of this subsection;

(c) If notice of objection to the execution of any such works and of the ground thereof is given to the Corporation before the date so specified and is not withdrawn before the expiration of fourteen days from that date the works to which the objection relates shall not be executed without the consent of the Minister.

(2) All tombstones kerbs or railings removed by the Corporation under the powers of this section shall remain the property of the owner of the grave from which they have been removed and if such owner does not claim them within a period of three months after the first publication of the advertisement referred to in sub-paragraph (i) of paragraph (a) of subsection (1) of this section the Corporation may put the tombstones kerbs or railings to such use as they may deem appropriate or they may dispose of them.

(3) Where any tombstone or kerb bearing a memorial inscription is removed the Corporation may (if requested so to do) after consultation with the owner of the grave (if any) at their own expense in substitution therefor place a memorial stone of a value not exceeding twenty-five pounds.

(4) The Corporation shall cause to be made a record of any tombstone kerb or railings upon or surrounding a grave removed under the powers of this section showing the particulars respecting any tombstone kerb or railings so removed as a separate entry and a copy of such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(5) Nothing in this section shall limit the jurisdiction of the consistory court of the diocese of Chichester and where a licence or faculty of that court is obtained for any work paragraphs (a) (b) and (c) of subsection (1) of this section shall not apply.

(6) In this section—

the expression “burial ground” includes a cemetery;

the expression “grave” includes a grave space a vault and a catacomb;

the expression “owner of the grave” means the person registered as having an exclusive right of burial in the grave;

the expression “tombstone” includes a monument or other memorial of a deceased person;

references to a tombstone or kerb or to railings include references to any part thereof.

PART IX

GENERAL

40. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister except that in the case of byelaws made under section 30 (Touting hawking etc.) of this Act the confirming authority shall be the Secretary of State.

41.—(1) For the purposes of this Act the expression “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(a) of the passing of any such resolution and of the date fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that date;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

PART IX
—cont.

(4) Either—

- (a) a copy of any such newspaper containing any such notice ; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by a resolution under this section requires the licensing or registration of a person carrying on any business or of premises used for any purpose it shall be lawful for any person who—

- (a) immediately before that day was carrying on that business or using any premises for that purpose ; and
- (b) had before that day duly applied for the licence or registration required by that provision ;

to continue to carry on that business and to use those premises for that purpose until he is informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (2) of section 43 (Appeals) of this Act.

Restriction on
right to
prosecute.

42. Proceedings in respect of an offence created by or under this Act (other than offences created by or under subsection (2) of section 18 (Trees grass verges and gardens) section 30 (Touting hawking etc.) and section 33 (Restrictions on use of loud-speakers in streets)) shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation.

Appeals.

43.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a court of summary jurisdiction under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action ; or
- (b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use

any premises for any purpose for which they were lawfully used up to that time ;

PART IX
—cont.

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Corporation themselves execute the work or take the action ; and
- (ii) that person may carry on that business and use those premises for that purpose.

44.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression “ department ” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section the expression “ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

45. Section 561 (Saving for indictments etc.) and section 562 (Powers of Act cumulative) of the Act of 1931 shall extend and apply to and for the purposes of this Act as if they were re-enacted herein. Application of provisions of Act of 1931.

46.—(1) The sections of the Act of 1936 mentioned in Part I of the Third Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act. Application of general provisions of Public Health Act 1936.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to Part VI (Sanitation and buildings) of this Act.

(3) The sections of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to Parts IV and VI of this Act and also to section 32 (Removal of stranded vessels from seashore) of this Act.

PART IX
—cont.

(4) The section of the Act of 1936 mentioned in Part IV of the said schedule shall have effect as if references therein to that Act included a reference to the Part of this Act mentioned in subsection (2) of this section and also to Part II (Premises used for sales by auction) of this Act.

(5) The section of the Act of 1936 mentioned in Part V of the said schedule shall have effect as if references therein to that Act included a reference to section 5 (Registration of premises used for sales by auction) section 18 (Trees grass verges and gardens) section 21 (Decorations in streets) section 30 (Tout-ing hawking etc.) section 31 (Unauthorised structures on sea-shore) and section 33 (Restrictions on use of loudspeakers in streets) of this Act.

Costs of Act.

47. The costs charges and expenses of and incidental to preparing applying for and obtaining this Act as taxed by the taxing officer of one of the Houses of Parliament shall be paid by the Corporation out of the general rate fund or out of moneys to be borrowed under this Act.

SCHEDULES

FIRST SCHEDULE

PROVISIONS OF BRIGHTON EXTRA-MURAL CEMETERY COMPANY'S
ACT 1851 SAVED FROM REPEAL

IX. That as regards every corpse buried in the consecrated part of the cemetery and which shall be brought from any other parish than the Parish of Brighton the said Company shall pay to the incumbent for the time being of the parish or ecclesiastical district from which such corpse shall have been removed for burial the sum of two shillings and sixpence for or in respect of every such corpse.

Compensation
to incumbents
of other
parishes.

SECOND SCHEDULE

APPORTIONMENT AND RECOVERY OF EXPENSES OF CONSTRUCTING
SEWERS

1. The sum apportionable shall not exceed the sum certified by the surveyor to be at the relevant date the average cost per lineal yard of providing a public sewer having an internal diameter of nine inches in a private street in the borough multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

2. The expenses incurred by the Corporation not exceeding the sum so apportionable shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street or part of the street in question according to the frontages of the respective premises as existing at the relevant date:

Provided that no sum shall be apportioned on any premises in contravention of any agreement between the Corporation and the owner of the premises and any sum which but for this proviso would have been apportioned on any premises shall be deducted from the aggregate sum to be apportioned under this paragraph.

3. As soon as the apportionment has been made the Corporation shall serve on the owners of the several premises affected notice of the sums respectively apportioned to them and the notice shall state the right of appeal conferred by the next following paragraph.

4. Any person aggrieved by an apportionment under this schedule may appeal to a court of summary jurisdiction and may on the appeal dispute the correctness of the surveyor's certificate as well as any other matter affecting the validity or correctness of the apportionment.

5. If the court finds on any such appeal that the aggregate sum apportioned is excessive or that the apportionment thereof is erroneous the court—

(a) shall order the Corporation to revise not only the sum apportioned to the appellant but also the sums apportioned to the owners of the other premises affected and to submit the revised apportionment to the court for approval ;
and

2ND SCH.
—cont.

- (b) may if satisfied that the owners of all premises affected have had due notice of the proceedings and an opportunity of being heard approve any such revised apportionment either without amendment or with such amendments as it thinks just.

6. Whenever a new building requiring foul water drainage is erected after the relevant date on any premises on which a sum has been or is thereafter apportioned under this schedule that sum shall be recoverable by the Corporation subject to and in accordance with the following provisions:—

- (a) The said sum shall be recoverable to an extent proportionate to the frontage on the street or part of the street of the site of the new building and the land occupied therewith:

Provided that where a sum has become payable in respect of the frontage of the site of a new building and land occupied therewith no further sum shall be recoverable in respect of the same length of frontage or any part thereof by reason of the erection of another new building on that site or that land;

- (b) At any time after whichever of the following events last occurs (that is to say):—

(i) the erection of the new building; or

(ii) the expiration of the time for appealing against the apportionment or if an appeal is brought within that time the final determination of the appeal;

the Corporation may serve on the owner for the time being of the new building a demand for payment of the amount recoverable together with interest thereon from the date of the demand:

Provided that where the drains of the new building are at the time of its erection made to communicate with a sewer other than the sewer the expenses of the construction of which are apportioned no such demand shall be served in respect of the building unless and until the drains thereof are made to communicate with the last-mentioned sewer.

7.—(1) If any person from whom any sum becomes recoverable under the last foregoing paragraph proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum is so recoverable the amount of that sum is disproportionate to the benefit accruing to the premises the Corporation may remit such part of that sum as they may think just but in that event if another new building is subsequently erected on the said land the said paragraph shall apply to that other building as if the first-mentioned building had not been erected:

Provided that the amount recoverable in respect of that other building shall not exceed the amount remitted.

(2) Any person aggrieved by a decision of the Corporation with respect to any such remission may appeal to a court of summary jurisdiction.

8.—(1) The sum apportioned on any premises under this schedule shall for the purposes of section 15 of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 be deemed to be a charge on the premises notwithstanding that it is not immediately recoverable.

(2) Where the whole or part of the sum so deemed to be a charge (hereafter in this sub-paragraph referred to as “the provisional charge”) becomes actually charged on the whole or part of the premises—

- (a) within fourteen days the registration of the provisional charge under the said section 15 shall be cancelled and the actual charge shall be registered under that section as from the date on which the provisional charge was registered ;
- (b) where a part only of the said sum has become actually charged on a part of the premises the remainder of that sum shall be deemed to be a charge on the remainder of the premises notwithstanding that it is not immediately recoverable and shall be registered accordingly within the said fourteen days under the said section as from the said date and the foregoing provisions of this sub-paragraph shall apply thereto accordingly.

9. For the purposes of this schedule—

- (a) a building shall be deemed to be a new building erected after the relevant date unless its erection was completed before that date ;
- (b) the following alterations and extensions shall be deemed to be the erection of a new building (that is to say) :—

- (i) the re-erection wholly or partially of any building of which an outer wall is pulled down (otherwise than in consequence of fire or other accident) either completely or to such an extent that the part of that wall remaining is less than half the previous height of the building (the height being measured from ground level to the highest point of the building) ;

- (ii) the conversion into a house of any building not originally constructed for human habitation ;

- (iii) the conversion of any premises into a factory shop or place of public resort ;

- (iv) any extension by reason whereof the area occupied by the site of the building will (with any previous extension made since the relevant date) be increased by an area of more than one-eighth or in the case of a building constructed for agricultural purposes one-quarter of that occupied by the site of the building before that date ;

- (c) the expression “ the relevant date ” means—

- (i) in relation to an apportionment under section 23 (Recovery of expenses of sewerage public highway) of this Act in pursuance of a resolution of the council the date when the resolution became operative ; and

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—cont.

(ii) in relation to an apportionment under section 24 (Recovery of expenses of sewerage prospective street) of this Act in respect of land becoming a street the date on which the street was laid out.

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Table of Statutes referred to in this Act

Short title	Session and chapter
Cemeteries Clauses Act 1847	10 & 11 Vict. c. 65.
Brighton Extra-mural Cemetery Company's Act 1851	14 & 15 Vict. c. xcviij.
Trade Union Act Amendment Act 1876 ...	39 & 40 Vict. c. 22.
Private Street Works Act 1892	55 & 56 Vict. c. 57.
Merchant Shipping Act 1894	57 & 58 Vict. c. 60.
Open Spaces Act 1906	6 Edw. 7. c. 25.
Public Health Acts Amendment Act 1907 ...	7 Edw. 7. c. 53.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5. c. 57.
Law of Property Act 1925	15 & 16 Geo. 5. c. 20.
Roads Improvement Act 1925	15 & 16 Geo. 5. c. 68.
Road Traffic Act 1930	20 & 21 Geo. 5. c. 43.
Brighton Corporation Act 1931	21 & 22 Geo. 5. c. cix.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Public Health Act 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Food and Drugs Act 1938	1 & 2 Geo. 6. c. 56.
Education Act 1944	7 & 8 Geo. 6. c. 31.
Water Act 1945	8 & 9 Geo. 6. c. 42.
Ministers of the Crown (Transfer of Functions) Act 1946	9 & 10 Geo. 6. c. 31.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6. c. 51.
Local Government Act 1948	11 & 12 Geo. 6. c. 26.

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